

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Probate Notes

202200564771PRWT: In the Matter of Kevin L Donaldson

07/01/2026 in Department J6

Account and Report Hearing on Amended Petition on First and Final Account and Report

For the hearing on 11/20/25, the Court issued the following tentative ruling:

“The objection filed on 11/12/25 by Mary Donaldson reveals several defects with the petition for final distribution filed by the personal representative.

First, the Court agrees that the prior order determining entitlement to distribution, entered on 9/21/23, held that Ms. Donaldson, as an omitted spouse, was entitled to 50% of the community property that belongs to the decedent. The spousal property order entered on 1/23/25 affirmed that 100% of the community property in the estate passes/belongs to Ms. Donaldson and is not subject to administration. Accordingly, the real property located at 1431 Wolverton Ave., Camarillo, and its contents belong to Ms. Donaldson and pass outside this administration.

Second, the 9/21/23 order also stated that **50%** of the separate property belonging to the decedent should pass to Ms. Donaldson. Pursuant to Probate Code section 6401, subdivision (c)(3), Ms. Donaldson is entitled to only 1/3 of the decedent’s separate property because he was survived by more than one child. Pursuant to Probate Code section 21610, subdivision (c), an omitted spouse is entitled to this same share of the decedent’s separate property. The Court notes that Ms. Donaldson’s petition to determine entitlement to distribution filed on 6/30/23, on pages 2 through 3, correctly quoted section 21610, subdivision (c), and the prayer for relief on page 4 correctly asked for an order determining, *inter alia*, that **1/3** of the decedent’s separate property be distributed to Ms. Donaldson.

However, the written order prepared by Ms. Donaldson’s counsel, Theresa McConville, without any explanation, changed the share of the separate property to 50%, and the Court signed the order without knowledge of the change. Accordingly, the Court intends to amend the order entered on 9/21/23 *nunc pro tunc* to reflect the correct intended ruling of the Court, to wit that Ms. Donaldson is entitled to 1/3 of the decedent’s separate property as an omitted spouse. Counsel McConville is to prepare and submit the proposed *nunc pro tunc* order.

Third, based on the Court’s order granting Ms. Donaldson’s spousal property petition on 1/23/25, the Wolverton Property and its contents were not part of this

administration. Accordingly, the Court agrees that the I&A should not have included these assets. The I&A total value should therefore be \$47,653.25.

Fourth, on a fee base of \$47,653.25, the statutory fee amount is \$1,906.13. Petitioner is directed to send notice to Harold Simon. Mr. Simon and Attorney Adam Pollock are to determine how to apportion the statutory legal compensation. (Prob. Code, § 10814.) If no agreement can be reached, the Court will require proof as to the services actually rendered by each attorney.

Fifth, the amended petition for final distribution alleges that no creditor's claim was filed in this case. However, Ms. Donaldson correctly points out that she filed a claim on 11/15/22. The claim consists of funeral expenses (\$2,673.11) plus post-death expenses concerning the Wolverton Property. Since this property has been determined to not be subject to administration and not part of this estate, it seems to the Court that Ms. Donaldson is not entitled to any reimbursements concerning the property from the estate. What authority is there to the contrary? The Court intends to approve the claim as to the \$2,673.11 in funeral expenses.

Ms. Donaldson claims that she and her attorney did not receive notice of the petition for final distribution. However, the notices filed on 10/20/25 and 11/7/25 include both Ms. Donaldson and Ms. McConville listed at their addresses.

There is no proof that the supplement filed on 11/7/25 was served. Petitioner is directed to file such proof.

Ms. Donaldson says that the share of the separate property not going to her should be distributed equally to Kevin Lee Donaldson, Jr., Christina Donaldson, Dallas Donaldson, Ryan Donaldson and Dallas Lee Donaldson. Not only does this list appear incorrect in terms of the decedent's children, but her assertion ignores the decedent's will, which directs that the estate go to the trustee of the Declaration of Trust executed on 7/26/05.

Without any citation to authority, Ms. Donaldson requests payment of her attorney fees and costs of \$4,242.50 from the estate (apparently). The Court intends to deny the request.

Petitioner will be directed to file a corrected I&A in accordance with this tentative ruling. He will be ordered to serve and file a supplemental accounting consistent with the corrected I&A. The Court intends to disallow his request for reimbursement for \$3,000 paid to "Phenix Invest. Asset Search" and \$400 paid for a real property appraisal."

The Court continued the hearing on the account and report to 2/18/26. No I&A was filed. The Court continued the matter once more to 4/22/26. No I&A was filed. The Court continued the matter yet again to this date.

As of 6/28/26, a corrected I&A still has not been filed by Petitioner Keith Donaldson (Attorney Adam Pollock). A supplemental account based on the corrected I&A has not been filed. A supplement regarding the statutory fee allocation between Attorneys Adam Pollock and Harold Simon has not been filed. Proof that the supplement filed on 11/7/25 was served has not been filed.

The Court intends to set an OSC re Failure to Comply with Court Order by Petitioner Keith Donaldson. The mandatory appearance by Mr. Donaldson will be required.